

GoAccess Partner Reseller Agreement

Initial Term: 12 months

This Partner Reseller Agreement (the “Agreement”) is made by and between:

GoAccess LLC, a Delaware limited liability company, with its office located at 8 The Green STE #20370, Dover, DE 19901 – hereinafter referred to as “Provider”

and

_____, an entity with its office located at _____ hereinafter referred to as “Reseller”.

Provider and Reseller are hereinafter individually referred to as a “Party” and jointly as the “Parties.”

Recitals

- Provider is a professional provider of visitor management, license plate recognition, patrol tracking, and access control software services (collectively, the “GoAccess Platform”);
- Reseller is in the business of marketing, selling, and supporting technology and/or security solutions to homeowners’ associations, gated communities, property managers, and similar organizations (“End Customers”);
- Reseller wishes to be appointed as a non-exclusive reseller of the GoAccess Platform, and Provider wishes to appoint Reseller, on the terms and conditions set forth in this Agreement.

The Parties have agreed as follows:

1. Appointment and Scope

- Appointment. Provider hereby appoints Reseller, and Reseller accepts appointment, as a non-exclusive, non-transferable reseller of the GoAccess Platform and related services (the “Services”) to End Customers.
- Non-Exclusivity. Nothing in this Agreement limits Provider’s right to market, sell, or license the Services directly or through other resellers, partners, or channels.
- No Sub-Resellers. Reseller shall not appoint sub-resellers, agents, or distributors of the Services without Provider’s prior written consent.
- Independent Contractors. The Parties are independent contractors. This Agreement does not create a partnership, joint venture, franchise, employment, or agency relationship. Neither Party has authority to bind the other or incur obligations on the other’s behalf.

2. Services

- Provider grants to Reseller a non-exclusive, terminable right to market and resell access to the GoAccess website and related services (the “Site”), the servers the Site is stored on, and the computer files stored on the servers (collectively, the “Services”) to End Customers.

- Provider may amend this Agreement from time to time, but only with prior notification to and the written agreement of Reseller. If such written agreement is not provided by Reseller, said amendments will have no effect toward Reseller.
- The Services are provided for the sole purpose of convenience, and no guarantee of security or safety is given as a result of the Services. Core functionality available for resale includes:
 - Mobile application for residents for management of visitors;
 - Administrative application for End Customer administration to manage resident accounts, administrative accounts, and visitor lists;
 - Processing of vehicles entering the premises;
 - A.I. License Plate Recognition analytics (per lane);
 - Amenity and smart door access control (per door/entry);
 - Patrol tracking and citation enforcement modules, where enabled.
- Service Availability. Because the Services rely on each End Customer's third-party internet service provider and local network setup, any limitations, incorrect settings, incorrect configuration, or bandwidth constraints in those services will also limit the manner in which the Services can be used. Provider aims to provide the Services in the scope and quality specified in this Agreement.

3. Orders and Provisioning

- Order Process. Reseller shall submit to Provider a written order for each End Customer deployment, identifying the End Customer, community/site address, Services and quantities ordered (lanes, doors, units), and requested service start date (each, an "Order"). Orders are subject to acceptance by Provider in writing.
- Provisioning. Upon acceptance of an Order, Provider will provision the applicable Services for the End Customer. The subscription term for each Order begins on the date the Services are made available to the End Customer (the "Service Start Date").

4. Reseller Obligations

- Promotion. Reseller shall use commercially reasonable efforts to market and promote the Services and shall conduct business in a manner that reflects favorably on Provider and the GoAccess brand.
- Accurate Representation. Reseller shall not make any representations, warranties, or guarantees concerning the Services beyond those contained in Provider's published documentation or expressly authorized by Provider in writing.
- First-Line Support. Reseller shall provide first-line support to its End Customers, including account setup assistance, onboarding, basic troubleshooting, and triage. Provider shall provide second-line support to Reseller for issues Reseller cannot resolve.
- Training. Reseller shall ensure its sales and support personnel complete any reasonable product training made available by Provider.
- Compliance. Reseller shall comply with all applicable laws, rules, and regulations in performing under this Agreement, including those relating to data privacy, consumer protection, and anti-bribery.

- Records. Reseller shall maintain complete and accurate records of all Orders, End Customer agreements, billing, and collections relating to the Services, and Provider shall have the right, upon reasonable notice, to review and audit such records, including supporting documentation reasonably necessary to verify amounts owed under this Agreement.

5. End Customer Agreements

- Reseller Contracts with End Customers. Reseller shall enter into a written agreement with each End Customer governing the commercial terms of the End Customer's purchase of the Services, including Reseller's pricing, billing, and collections. Reseller is solely responsible for its pricing, billing, collections, and commercial relationship with each End Customer. Provider is not a party to, and has no liability under, any commercial agreement between Reseller and an End Customer.
- Provider Contracts with End Customers. Because Provider hosts the Services and handles End Customers' sensitive data, Provider must have a direct written agreement with each End Customer governing the End Customer's use of the Services, data handling, and service terms. Reseller shall facilitate the execution of such agreement between Provider and each End Customer prior to, or as a condition of, the applicable Service Start Date. For clarity, Reseller's agreement with an End Customer governs commercial terms between Reseller and the End Customer, and Provider's agreement with the End Customer governs use of the Services and data.
- Minimum Flow-Down Terms. Each agreement between Reseller and an End Customer shall, at a minimum: (i) disclaim all guarantees of security or safety arising from the Services; (ii) limit Provider's and the Provider Parties' liability at least as protectively as Section 10 of this Agreement; (iii) prohibit reverse engineering, copying, or unauthorized access to the Services; (iv) acknowledge Provider's ownership of all intellectual property in the Services; and (v) permit Provider to suspend the End Customer's access for non-payment by Reseller or violation of this Agreement.
- Survival of End Customer Service. Upon expiration or termination of this Agreement, Provider may, at its option, continue providing the Services to any End Customer directly or through another channel, and Reseller shall reasonably cooperate in transitioning End Customer accounts.

6. Hardware and Installation

- Reseller (or its End Customers) is responsible for securing and installing all computer and networking hardware required to run the Services, including but not limited to cameras, access control panels, desktop computers, internet, scanners, printers, and paper.
- Reseller will use its own qualified personnel to install all equipment and ensure it is in working order to run the Services.
- Reseller and/or its End Customers are responsible for all maintenance, repair, and replacement of hardware.

7. Wholesale Pricing, Billing, and Payment

- Wholesale Pricing. Reseller shall pay Provider the wholesale fees for all Services purchased by each End Customer as set forth in the applicable accepted Order.

Wholesale fees shall be negotiated in good faith on a per-Order basis and are binding once the Order is accepted by Provider.

- End Pricing. Reseller retains, as its sole compensation under this Agreement, the difference between mutually agreed Resell prices and the wholesale fees owed to Provider.
- Invoicing. Provider will invoice Reseller for wholesale fees on either an annual or quarterly basis, as elected in each accepted Order, which election may align with the payment terms between Reseller and the applicable End Customer.
 - Annual Invoicing Option: Provider will invoice Reseller for all wholesale fees annually, with the first annual payment for each Order due upon Order acceptance.
 - Quarterly Invoicing Option: Provider will invoice Reseller for all wholesale fees quarterly, with the first quarterly payment for each Order due upon Order acceptance. Invoices for upcoming quarters are issued on the 15th of the month prior to the start of each quarter (December 15th, March 15th, June 15th, and September 15th for Q1–Q4, respectively) and are due at the beginning of each quarter. The initial license payment will be deducted from the first quarterly invoice.
- Payment Methods. Available methods of payment: Direct Deposit (ACH).
- Late Payment. A payment will be deemed late if received more than 30 calendar days past the due date. In such cases, an additional charge of \$1,000 per overdue month will be incurred, accruing monthly until full payment is received. Provider may suspend provisioning of new Orders, and/or suspend Services to affected End Customer accounts, while Reseller is in material payment default.
- Payment Independent of Collections. Reseller's payment obligations to Provider are absolute and are not contingent upon Reseller's collection of any amounts from End Customers.

8. Intellectual Property and Branding

- Ownership. Provider retains all right, title, and interest in and to the Services, the GoAccess Platform, all software, documentation, and all related intellectual property. No rights are granted to Reseller except as expressly set forth in this Agreement.
- Trademark License. Provider grants Reseller a non-exclusive, non-transferable, revocable license during the Term to use the GoAccess name, logo, and marks solely to market and resell the Services in accordance with Provider's brand guidelines, found at www.GoAccess.com/brand. All goodwill arising from such use inures to Provider.
- Restrictions. Reseller shall not (and shall not permit any End Customer or third party to) copy, modify, create derivative works of, reverse engineer, decompile, or attempt to extract source code from the Services, or remove or alter any proprietary notices.
- Feedback. Any suggestions or feedback provided by Reseller or End Customers regarding the Services may be used by Provider without restriction or obligation.

9. Confidentiality

- Each Party agrees that:

- all Confidential Information will remain the exclusive property of the disclosing Party, and the receiving Party will not use any Confidential Information for any purpose other than in furtherance of this Agreement;
 - it will do its utmost to ensure that its Representatives respect the confidential character of the Confidential Information;
 - it will do its utmost to ensure that its Representatives do not copy, publish, disclose to others, or use the Confidential Information (other than pursuant to the terms of this Agreement);
 - it will return all hard and soft copies of Confidential Information upon written request by the other Party.
- Each Party agrees that it will make every reasonable effort to ensure that Confidential Information of the other Party is kept within its control and that it is securely protected against theft or unauthorized access. Under all circumstances, each Party shall maintain security, integrity, and confidentiality measures at least to the same standard that it applies to its own Confidential Information.
 - Wholesale pricing, margin structures, and the terms of this Agreement constitute Provider's Confidential Information and shall not be disclosed to End Customers or third parties.

10. Limitation of Liability

- **Liability Cap.** The liability of Provider, including its officers, directors, employees, affiliates, agents, licensors, representatives, attorneys, and business partners (collectively, the "Provider Parties"), to any party for any claims, damages, or losses arising out of or in connection with this Agreement, regardless of the type of action or the basis of the claim (whether in contract, tort, including negligence, or otherwise), shall be limited to the total amount of fees paid by Reseller to Provider under this Agreement in the twelve (12) months preceding the event giving rise to such liability.
- **Disclaimer of Indirect and Consequential Damages.** In no event shall Provider or the Provider Parties be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages, including but not limited to loss of profits, loss of business, loss of use, loss of data, or loss of goodwill, arising out of or in connection with this Agreement, even if Provider has been advised of the possibility of such damages.
- **No Liability for Certain Events.** Provider and the Provider Parties shall not be liable for, and shall be held harmless against, any claims, damages, losses, or liabilities resulting from or related to theft, injury, or death that occurs as a result of the Services rendered to Reseller, its End Customers, or their constituents, including but not limited to residents, renters, vendors, visitors, contractors, and employees. This exclusion applies irrespective of the form of action, whether based on contract, tort (including negligence), strict liability, or any other legal or equitable theory.

11. Indemnification

- Reseller agrees to indemnify, defend, and hold harmless Provider and the Provider Parties from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (i) Reseller's or its End Customers' use of the Services; (ii) any breach by Reseller of this Agreement; (iii) any representation, warranty, or commitment made by Reseller to an End Customer

beyond those authorized by Provider; (iv) Reseller's agreements with, or billing of, End Customers; and (v) any violation by Reseller of any law or the rights of a third party.

12. Force Majeure

- Neither Party shall be liable for any failure to perform its obligations under this Agreement if such failure is caused by events outside its reasonable control, including, but not limited to, acts of God, war, terrorism, natural disasters, pandemics, labor strikes, or interruptions in telecommunications, power, or transportation ("Force Majeure Events"). Upon the occurrence of any Force Majeure Event, the affected Party shall notify the other Party as soon as reasonably practicable and shall exert reasonable efforts to resume performance.
- During the duration of any Force Majeure Event affecting performance, the obligations of the affected Party under this Agreement will be suspended and the time for performance extended for the duration of the event plus a reasonable period to resume normal operations.

13. Term and Termination

- Term. This Agreement commences on the date signed by both Parties (the "Effective Date") and continues for an initial term of twelve (12) months. The Agreement will automatically renew for additional one-year periods unless either Party gives the other notice of non-renewal at least 90 days before the end of the then-current term.
- Termination for Cause. Either Party may terminate this Agreement upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice thereof. Provider may terminate immediately upon written notice in the event of Reseller's non-payment beyond the cure period, insolvency, or misuse of Provider's intellectual property.
- Effect of Termination. Upon expiration or termination: (i) all licenses granted to Reseller (including the trademark license) immediately terminate; (ii) Reseller shall cease holding itself out as a GoAccess reseller; (iii) all amounts owed to Provider become immediately due and payable; (iv) existing End Customer subscriptions then in effect will, at Provider's option, either continue through the end of their then-current terms under this Agreement's payment provisions or be transitioned to Provider or another channel; and (v) each Party shall return or destroy the other's Confidential Information upon written request.
- Non-Interference. During the Term and for twelve (12) months thereafter, Reseller shall not solicit or induce any End Customer using the Services to terminate or reduce its use of the Services or to migrate to a competing platform.

14. General Provisions

This Agreement represents the entire understanding between the Parties concerning the subject matter hereof, and supersedes all prior agreements and understandings, whether written or oral. Each Party has read and understands this Agreement and agrees to be bound by its terms. This Agreement may only be amended in writing and signed by both Parties. Reseller may not assign this Agreement without Provider's prior written consent. This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict of laws principles. The undersigned hereby represent and warrant that they are duly authorized and have legal capacity to execute and deliver this Agreement. This Agreement is binding upon and will insure

to the benefit of the Parties hereto and their respective heirs, successors, and permitted assigns.

Reseller – _____:

Name and Title

Date

Signature